

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 13
Honorable Jeffrey B. El-Hajj
Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: September 9, 2026 TIME: 10:00 A.M.

To contest the ruling, you must call (408) 808-6856 before 4:00 P.M.

You must also contact the other side before 4:00 P.M. to inform them that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

The courthouse is open: The court **strongly prefers in-person** appearances for all contested law-and-motion matters. For all other hearings, parties may appear either in person or by video. Telephone-only appearances are no longer permitted for civil hearings unless the court grants an exception. (Civil Local Rule 5.A.)

Scheduling motion hearings: Please visit <https://reservations.sccscourt.org> or call 408-882-2430 between 8:30 a.m. and 3:00 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. Motion papers must be filed no more than five court days after reserving the hearing date, or the date will be released to other cases.

Remote appearances: Department 10 uses Unicorn Digital Courtroom (UDC) for remote hearings. **This system requires advance registration with a case number and hearing date.** Please visit this link if you need to appear remotely, and then scroll to the link for Department 10:
<https://santaclara.courts.ca.gov/online-services/remote-hearings>.

Recording is prohibited: Most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

Court reporters: Unfortunately, the court is not able to provide official court reporters for civil proceedings. If any party wishes to pay for their own court reporter, the appropriate form must be submitted: <https://santaclara.courts.ca.gov/general-information/court-reporter-information>.

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10:00 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	18PR184370	In the Matter of the Liberato Family Trust	Click LINE 1 or scroll down for ruling.

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Calendar Line 1

Case Name: In the Matter of the Liberato Family Trust

Case No.: 18PR184730

INTRODUCTION

The Liberato Family Trust (the Trust) was created by Rafael Liberato and Asuncion Liberato (Asuncion) in 1994. It was restated and amended by Asuncion in 2015 following her husband's death. Asuncion is now deceased. This action was initiated by trust beneficiary Annabelle Jinkins (Petitioner), the settlors' daughter, in 2018. Petitioner filed a Petition to Compel Accountings and to Determine Validity of Purported 2015 Restatement and Amendment to Surviving Spouse's Survivor's Trust.

Petitioner alleged that her sisters, former trustee Carolina Liberato (now deceased) and current trustee Norina Sharpe (Respondent), procured the 2015 restatement of and amendment to the Trust by fraud and undue influence when their mother lacked mental capacity. Petitioner also alleged mismanagement of the Trust and its subtrusts, including a failure to provide accountings. Petitioner prayed for judgment invalidating the 2015 instruments, an accounting, and punitive damages.

Respondent then filed a petition to disinherit Petitioner, alleging her action triggered the Trust's no contest clause. Respondent also filed accountings for and petitions for approval of two subtrusts.

Petitioner petitioned to remove Respondent as trustee, alleging that Respondent had embezzled approximately \$250,000 in Trust funds for her personal benefit.

The matter proceeded to trial before the Honorable Rafael Sivilla-Jones. Judge Sivilla-Jones issued a written order in March 2022. That order was affirmed on appeal in 2024.

Still pending is Respondent's petition to approve accountings. On July 7, 2025, Respondent filed her Amended Petition for approval of her Third-Amended First Accounts. On November 17, 2025, Petitioner filed two documents: (1) Annabelle Jinkins' Objections to Norina Sharpe's Third-Amended First Account and Report of the Liberato Bypass Trust for Period of 10/24/2016 to 04/30/2019; and (2) Annabelle Jinkins' Objections to Norina Sharpe's Third-Amended First Account and Report of the Liberato Survivor's Trust for Period of 10/24/2016 to 04/30/2019. On June 24, 2026, Petitioner filed amended objections without leave of court. The court grants Respondent's request for judicial notice of the original and amended objections. (Evid. Code, § 452, subd. (d).)

At issue is Respondent's motion to strike the amended objections filed June 24, 2026. Petitioner filed an opposition and Respondent filed a reply.

DISCUSSION

A court may strike out any irrelevant, false, or improper matter asserted in a pleading. (Code Civ. Proc., § 436, subd. (a).) A court may also strike out all or any part of a pleading not drawn or filed in conformity with the laws of the State of California. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike shall appear on the face of the challenged

pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).)

In her opposition, Petitioner agrees to withdraw her amended objections filed June 24, 2026. (Petitioner has filed a motion to file amended objections, which is set for hearing on October 9, 2026.) Because Petitioner has not withdrawn the amended objections yet, the motion to strike is GRANTED.

CONCLUSION

The motion to strike is GRANTED. Petitioner's June 2026 objections are stricken. Those objections are entitled: (1) Annabelle Jenkins' Amended Objections to Norina Sharpe's Third-Amended First Account and Report of the Liberato Bypass Trust for Period of 10/24/2016 to 04/30/2019; and (2) Annabelle Jenkins' Amended Objections to Norina Sharpe's Third-Amended First Account and Report of the Liberato Survivor's Trust for Period of 10/24/2016 to 04/30/2019.

The court will prepare the order.

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